

Sanctions

The court “shall” impose a monetary sanction against the losing party on the motion for protective order, unless it finds that party made or opposed the motion “with substantial justification” or other circumstances render sanctions “unjust.” (CCP §2033.080(d).)

Neither party is entitled to sanctions. Defendant properly brought the motion because Plaintiff did not justify serving more than the permitted 35 RFAs. However, Plaintiff properly opposed the motion because the substance of the RFAs was proper. Given both parties had meritorious arguments both in support of and in opposition to the motion, sanctions are not appropriate for either party.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501786	PENICK VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL: ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS SET ONE BY ARLENE PENICK

Tentative Ruling: Granted in part.

Moot as to substantive motion, but granted as to sanctions.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Arlene Penick (“Plaintiff”) slipped and fell at Defendant Eisenhower Medical Center (“Defendant”) causing her personal injuries. On March 14, 2025, Plaintiff filed her complaint alleging two causes of action: 1) general negligence; and 2) premises liability.

Plaintiff moves to compel initial responses to requests for production of documents, set one from Defendant, which were served on January 8, 2026. Plaintiff’s counsel declares he gave extensions to April 15, 2026 to respond, but no verified responses were received by that date. Plaintiff also requests sanctions of \$2,565 (\$450 x 5.7 hours + \$60 filing fee).

In opposition, Defendant states its counsel requested an extension to May 6, 2026, but Plaintiff only provided until April 15, 2026. Defendant’s counsel’s office served unverified responses April 15, 2026, Plaintiff filed the motion May 5, 2026 and verified responses were served May 12, 2026. Defendant argues sanctions are not appropriate as counsel inadvertently forgot to follow up on her client’s execution of the verification, but did so promptly after receiving the motion and served the verification upon receipt.

In reply, Plaintiff argues Defendant’s late responses were so poor that they required a 29 page meet and confer letter and as such sanctions are appropriate.

Motion to Compel Response(s)

Code of Civil Procedure sections 2030.290(b) allows the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).)

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

Sanctions

As to sanctions, for production of documents, Section 2031.300(c) provides that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Defense counsel requested a continuance to May 6, Plaintiff’s counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted. However, Plaintiff’s request for \$2,565 is too much for this straightforward motion. Reduced to \$960 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601050	ROSARIO VS PSTPS, INC.	MOTION FOR LEAVE TO AMEND COMPLAINT OF PRISCILLA BRITTANY ROSARIO BY PRISCILLA BRITTANY ROSARI

Tentative Ruling: Granted.

No opposition filed by served defendants and several defendants have not yet been served.

Plaintiff to file proposed 1st Amended Complaint within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2401945	VILLAGOMEZ VS URIBE	NOTICE OF MOTION AND MOTION FOR ORDER SETTING ASIDE DEFAULT, VACATING DEFAULT JUDGMENT

Tentative Ruling: Denied.

Moving Defendant seeks relief from previously entered default on September 25, 2024.

Court to provide notice pursuant to CCP 1019.5.